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The Director

When replying please quote
KMTC/E&S/6/VOL.XXXI (587)

Ref: No.



KMTC/QP-17/CD
KENYA MEDICAL TRAINING COLLEGE
P.O. BOX 30195-00100
NAIROBI

16/01/2023

Date.....

CONTRACT AGREEMENT

CONTRACT REF. NO: KMTC/HQ/106CD/2022-2023

1. THE AGREEMENT

THIS AGREEMENT is made on the 16th day of January, 2023.

BETWEEN

KENYA MEDICAL TRAINING COLLEGE – Headquarter P.O BOX 30195-00100 Nairobi (hereinafter referred to as the **CLIENT**) which expression shall include his assigns, Personal representatives and heirs) on the other part

AND

M/S. Xtranet Communications Ltd P.O. Box 27346-00100 Nairobi (Hereinafter referred to as the **Contractor**) which expression shall include his assigns, personal representative and heirs) on the other part.

WHEREAS the KMTC- Headquarter Invited bids for Proposed Re-Designing and Revamping of Website for KMTC College and has accepted a tender by the tenderer for the Proposed Re-Designing and Revamping of Website for KMTC College of the said service at a contract sum of Ksh. 1,962,400.00/= (One Million nine Hundred and Sixty-Two Thousand Four Hundred Shillings *only*).

A. KMTC has awarded Quotation No. KMTC/HQ/106/2022-2023 to the service provider for Supply of the proposed Re-Designing and Revamping of Website for KMTC College (hereafter called "the contractor")

B. **THE CLIENT** (KMTC – Headquarters is desirous to contract Supply of Proposed Re-Designing and Revamping of Website for KMTC College on a contractual basis from the **CONTRACTOR**.

C. THE CONTRACTOR has agreed to provide the said service to the client at the rates/contract price specified hereto in the manner and subject to the terms and conditions hereinafter stated.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS: -

1. In this Agreement unless the context otherwise requires the following words and expressions used in the agreement shall have the same meaning ascribed to them.

2. The following documents shall be deemed to form and shall be read and construed as part of this Agreement, viz:

- a] The Quotation form and the price schedule submitted by the bidder;
- b] The schedule of requirements (scope of work)
- c] The evaluation criteria
- d] The general conditions of the contract
- e] The special conditions of the contract
- f] The KMTC Notification of award
- g] Letter of acceptance

1. DEFINITIONS: -

Unless the content otherwise requires, the words and expressions in this agreement shall have the meanings as described to them.

1.1 "The contract or agreement" means the agreement entered into between the Procuring entity and the service provider as recorded in the contract form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

1.2 "Effective date" means the date as stipulated in this agreement.

1.3 "Contract price" means the price payable to the tenderer under the contract for the full and proper performance of its contractual obligations.

1.4 "Client" means [KENYA MEDICAL TRAINING COLLEGE – Headquarters

1.5 "Party" means either the client or the service contractor

1.6 "The contractor" means the contracted bidder and "service" means service that will be provided by the contractor to the client pursuant to this agreement.

1.7 "Duties" means providing, performing, executing, engaging and or obliging to moral or legal duty to provide services by the firm to the client.

1.8 "Day" means Calendar day.

1.9 "CEO" Officer in charge of KMTC, Accounting Officer.

2.0 "KMTC" means Kenya Medical Training College.

2.1 TERMS AND CONDITIONS OF CONTRACT

2.2 That the **CLIENT** shall let and the **CONTRACTOR** shall take the responsibility of offering such services at KMTC, headquarter within the premises for a period of **1 year** for Supply of Proposed Re-Designing and Revamping of Website for KMTC College services commencing from the date of possession of the site, during which this contract shall be in force.

2.3 Throughout the duration of this Agreement, the contractor/service provider shall ensure that:

- a. All service provision personnel employed in the performance of duties and obligations of the contractor/service provider have been or will [at the expense of the service provider] be subjected to thorough medical examination by a licensed Clinic or medical practitioner and passed fit for their duties where deemed necessary.
- c. Service personnel deployed by the contractor to carry out the said service will not report to work at the client's premises while intoxicated with alcohol or any other drug.
- d. Any contractor's staff found intoxicated or not fit to do the work at the client's premises will be replaced by the contractor within **24 hours** failure to which payment to the company in regard to the staff shall be deducted accordingly.
- e. Payment for the services will only be made against certification report sheets duly signed by the technical officer or an adhoc inspection and acceptance committee appointed in writing by the Chief Executive Officer. The report may be attached to the invoice alongside with the payment certificates which will be then forwarded to the client's supply chain department for necessary payment to be processed,
- f. The contractor shall provide his/her staff with the necessary protective gears and identification badges which shall be put on while on duty at his/her own cost.
- g. The contractor will be expected to use his/her own equipment in providing the services and provide adequate quality materials/tools to ensure efficient and uninterrupted performance of duty.
- h. The actual timetable for services will however be agreed upon by both parties.
- j. Details of services to be offered are as specified in the Quotation documents in the detailed bills of quantities.

k. That the contractor shall only confine herself to the aforesaid services and not to interfere with any property of the institution and shall at all-time maintain reasonable silence as the **CLIENT** is a learning institution.

l. Wages paid to the employee to be deployed must conform to the ministry of labour guidelines on minimum wages and all other terms and conditions of employment stipulated in the labour laws. KMTC will be at liberty to confirm compliance to this from whatever source.

2.5 All Contractor's staff keeps out of prohibited areas as stipulated in the College rules and regulations unless they are accompanied by a KMTC staff where need be. The working Staff must be conversant with the College rules.

2.6 The contractor's staff/workers are not allowed to harass, beat or engage in a verbal confrontation with the Client's staff, students, customers or visitors of the client. Any claim arising from such an incident shall be responsibility of services providing company and liable for legal action. Failure to pay such claims or the resultant court awards will automatically invalidate the contract.

2. LOGISTIC

3.1 The contractor shall be responsible for both his/her employees, tools and equipment.

3.2 The contractor provider shall be held responsible for damages or any loss of working tools & equipment under care of its staff.

3. CLAIMS

1. Notice of all the claims by the client in the respect of any loss, damage, or injury in the consequential or indirect loss will be given in writing to the company, giving details of such loss, damage or injury within seven (7) days after discovery of such damage, loss or injury

2. Claims not settled by the contractor within a period of (14) days shall be used by the client as a good reason for termination of the contract pending further litigation on the matter.

4. CONTRACT PRICE

1. In the consideration of the services to be rendered by the contractor of the company under this agreement, the client shall pay the contractor the fees for the services rendered at the rates as specified in the quotation and the first schedule of this agreement.

2. The price (inclusive of VAT) quoted by the contractor is not subject to the variations either by the client or the contractor during the contract period. In case of any variations, such variations shall be treated as new procurement and shall follow the due process of law.

3. The client shall pay to the contractor the agreed monthly fee within 90 days (after service are rendered) from the date of receipt of the invoice from the contractor.

4. The price quoted by the contractor is inclusive of the cost of the supervisory checks and therefore fees for supervisors will be the responsibility of the contractor.

5. Price fluctuations arising from unforeseen circumstances such as Salary increase affected by the state or the contractor devaluation, inflation, labour disputes and court ruling /regards will be the responsibility of the contractor.

5. TERMINATION

1. This agreement shall remain in the force for ninety (90) or until either party terminates the contract in writing giving a notice of one month.

2. The client (taking into account the brief from college in charge) may without prejudice to any other remedy accruing it for breach of contract in the whole or in the part if; -

a) The company frequently fails to provide services of high standards in the performance of this agreement and the complaint has been sent in writing to the contractor by the client's principal on the two previous occasions.

b) The contractor is officially declared bankrupt by the court of law.

c) The contractor is officially dissolved or deregistered by the government of Kenya.

d) If the contractor fails to honor summons or request to write statements on the incidents which happened in the client's premises while the staffs were on duty.

e) The contractor fails to settle claims for damages /losses three months after judgement is made by the court of law, arbitrator or mutual understanding between the client and the company or in accordance with the dictates of this contract.

f) The contractor fails to perform any other obligation under this agreement.

3. Upon termination of the contract, the client company shall be permitted to remove from the clients premises all its equipment, sign plates and instruments and the return of all the client's materials which it will have obtained from the client when the contract was in operation.

6. FORCE MAJEURE

1. Both parties shall be released from their respective obligations in the event of a major natural calamity which is beyond the control of both parties such as war, earthquake, volcanic eruption, floods, natural insurrection, civil strife, epidemics etc.

2. If of the aforesaid events shall occur, either party shall immediately and without delay notify the other in writing or unless otherwise directed in writing, the parties shall continue to perform their obligations under the agreement as far as reasonably practical and shall continue to perform alternative means for the performance therefore if the circumstances shall permit.

7. CONFIDENTIALITY

1. The contractor, its staff servant and the agents shall not at any time during or for the year after termination of this agreement divulge or allow to be divulged to any person or the third party any information related to the business or affairs of the client. Doing so will attract a law suit on breach of confidentiality and trust.

8. SUB-CONTRACTING

1. The contractor shall not assign or sub contract any of its rights or duties under this agreement and any attempt to do so without written authority from the client will automatically invalidate the contract.

9. INDUCEMENT

1. If the contractor, its staff, servants, agents shall offer, give, agree to give any inducement, bribe, gift, gratuity, commission or reward to any person for the doing or the bearing to do any action in relation to this agreement, and in the absence of any credible punishment for the offender, such act will itself terminate this agreement.

2. If the contractor's officer or staff receive or facilitate other people to receive or give bribes when working in the clients premises under the terms of this agreement, their action will be a violation of this contract and the client will send a written complaint to the contractor after which the culprit must be removed from the clients premises for good pending other action by the client on the matter.

10. LAW, DISPUTE RESOLUTION AND LANGUAGE

i. The client and the contractor shall make every effort to resolve amicably by direct informal negotiations any disagreement or dispute arising between them under the connection with the contract.

ii. If after (30) days from the commencement of such informal negotiations both parties have been unable to resolve amicably a contract dispute either party may require that the dispute be referred for resolution to formal mechanism.

11. GOVERNING LANGUAGE

The contract shall be written in the English language. All correspondence and other documents pertaining to the contract, which are exchanged by the parties, shall be written in the same language.

12. APPLICABLE LAW.

i. The contract shall be interpreted in accordance with the laws of Kenya unless otherwise specified in the contract.

13. NOTICES

i. Any notice given by one party to the other pursuant to this contract shall be sent to the other party by post or by fax or e-mail and confirmed in writing by the other party's address specified. A notice shall be effective when delivered or on the notices effective date, whichever is later.

14. AUTHORIZING SIGNATORIES

In witness whereof the duly authorized representatives of the parties hereto have caused their signatures to be affixed the day and year first written above.

SIGNED AND STAMPED with the Common Stamp of

The Procurement Entity:

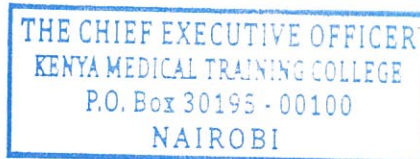
K.M.T.C

Name: Dr. Kelly Oluoch

Signature:

Designation: Chief Executive Officer

Date: 16th January, 2023



In the Presence of DR. SILAS E. NJAU

Signed: [Signature]

Dated: 16th January, 2023

SIGNED AND STAMPED with the Common stamp of

M/s Xtranet Communications Limited,

P.O. Box 27346-00100,

NAIROBI.

Name: Henry Mwangi

Signature: [Signature]

Designation: CHIEF EXECUTIVE

Date: 16th January, 2023

In the Presence of.....

Name: Joseph Kinuthia

Signed: [Signature]

Dated: 16th January, 2023

